

26STCV03257 26STCV03257

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-09-15

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Case Number: 26STCV03257 Hearing Date: September 15, 2026 Dept: 514

Ricard v. Woolley

26STCV03257

Defendant's Motion to Strike

Tentative Ruling

The motion to strike is denied.

On February 2, 2026, Lonnie C.

Ricard ("Plaintiff") filed the complaint in this action.

Before any answer or responsive

pleading was filed, Plaintiff filed a First Amended Complaint (the "FAC") on

June 24, 2026.

On June 30, 2026, Defendant

Roxanne Woolley ("Defendant") filed this motion to strike. Defendant argues that the filing of the FAC, without a stipulation or court order, was improper.

Defendant is incorrect. Code of Civil Procedure section 472 provides,

"A party may amend its pleading once without leave of the

court at any time before the answer, demurrer, or motion to strike is filed." (Code Civ. Proc., § 472, subd. (a).)

The motion to strike is denied.

Conclusion

The Court DENIES

the

motion to strike filed by Roxanne Woolley.

Defendant

Roxanne Woolley is to file an answer or other responsive
pleading to the FAC by no later than September 30, 2026.

Plaintiff is ordered to give notice.